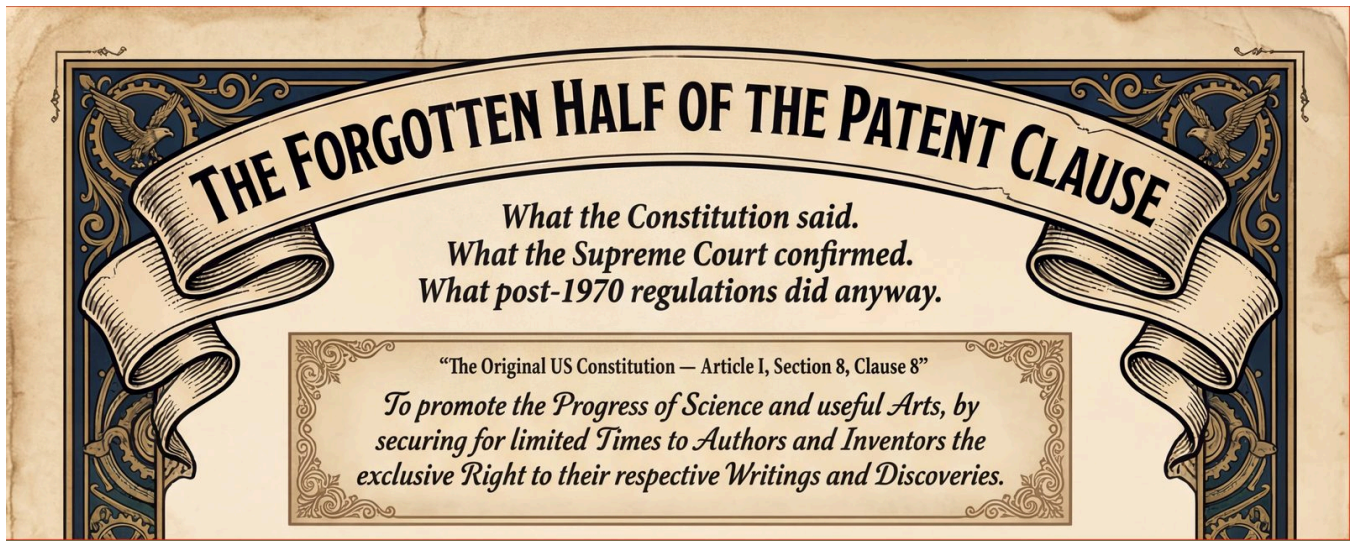




The Forgotten Half of the Patent Clause

How Federal Regulations Doubled the Cost of American Living and Rewrote the Constitution

A constitutional-law litigation strategy and a citizen's playbook — in one book.

by Roleigh Martin

An invitation to attorneys — and to readers who know one — to review a constitutional argument being prepared for federal court.

What the book argues

Article I, Section 8, Clause 8 lets Congress grant inventors exclusive rights, but only “for limited Times.” When a patent expires, the right to make, copy, and improve the invention passes to the public. That is the bargain: a temporary monopoly in exchange for a permanent public domain, affirmed by the Supreme Court across more than a century of unbroken precedent.

Beginning around 1970, federal energy and safety agencies — the EPA, NHTSA, and the Department of Energy — built a regulatory wall around that bargain. They did not repeal the public's right to remanufacture a patent-expired tractor, pickup, furnace, or semi-truck; they wrote rules — a documented regulatory ratchet and a statutory anti-backsliding mechanism, neither granting a grandfather exemption for remanufactured patent-expired products — that make it impossible to lawfully build and sell one. The core technology is legally free. No one can lawfully build it. The book's claim is that the words “limited Times” have, in practical

effect, been removed from the Constitution by federal regulation, without an amendment and without a vote — and that the remedy lies in a single federal courtroom, on two constitutional prongs: the Patent Clause and the Takings Clause.

No federal court has ever ruled on the question. It is a question of first impression. The book is the public-facing brief for the litigant who eventually files it.

About the author — and why a non-lawyer wrote it

I am not an attorney, and the fair question any careful lawyer will ask is whether a non-lawyer can be trusted to handle a constitutional argument responsibly. The record I can offer:

- Co-inventor of **U.S. Patent No. 5,359,509** — the AdjudiPro® AI claims-adjudication system, which entered the Smithsonian’s permanent collection in 1996. I have lived inside the patent system as a named inventor, not merely read about it.
- A retired Fortune 25 executive (Optum / UnitedHealth Group), with an M.A. in Sociology emphasizing survey research.
- Author of **111+ long-form articles** on the patent and regulatory questions — 28 of them patent-specific — with more than 7.7 million total reader impressions. The argument has been developed in public, tested against readers, and refined over many months.
- The manuscript has already been read by practicing attorneys and red-teamed by a former federal regulatory lawyer; the argument cites each authority only for what it holds, and flags every inference as the book’s own.
- Founder of the Make American Living Affordable (MALA) movement.

Chapter 34 — reason the argument yourself

One chapter is built precisely for a skeptical reader. “*Reason the Constitutional Argument Yourself: The Open-Book Examination*” hands you the primary materials — the Supreme Court holdings, the regulatory facts, the statutory and regulatory authority, and both advocates’ cases — and invites you to put the question to an artificial-intelligence language model and judge the reasoning for yourself. Eleven independent AI models, reasoning from those materials, converged on a finding that a cognizable injury exists. They decide nothing — only a court can — but the convergence is offered as one more thing a reader can weigh, and verify, without taking my word for any of it.

The chapter, the examination materials, the prompts, the scoring sheet, and the full record of the eleven models’ replies are all available here:

- The exam materials and how to run them yourself
- The full chapter — and the eleven AI models' complete replies
- The complete endnotes, glossary & key-terms apparatus — every citation with a live source link

The request

IF YOU ARE AN ATTORNEY

As I move toward publishers, the recurring question is whether a non-lawyer can be trusted to handle the constitutional argument responsibly. A few words from a lawyer would settle that better than anything I could say myself. If, after your review, you are comfortable doing so, would you be willing to write a brief paragraph — two or three sentences — stating simply that the work is well-researched and merits serious consideration and a public hearing?

I am asking only for that — a statement of seriousness, not agreement with my conclusions. If you find it warrants more, you are of course free to say so, but there is no expectation. Entirely your own words, reflecting only what you can honestly stand behind.

Chapter 34 and the exam materials above are the efficient place to start — they let you test the core of the argument quickly. The full manuscript is there for whoever wishes to go deeper. Any attorney who contacts me can receive the complete Author's Review manuscript for their review — as a PDF, as a printed trade paperback (available at cost, including shipping), or as an EPUB — whichever suits how you prefer to read.

IF YOU KNOW AN ATTORNEY

If this argument belongs in front of someone you know who practices law, I would be grateful if you would pass it along.

To reach me, or to send a paragraph:

x.com/RoleighMartin · **RoleighMartin@proton.me**

Articles introducing the argument:

The Constitutional Violation No One Reports: Who Profits from Blocking Expired-Patent Competition?

x.com/RoleighMartin/status/2023078933416071558

The Forgotten Half of the Patent Clause: What was Promised When Patents Expired

x.com/RoleighMartin/status/2042726307931287738

Why Wealthy Nations Break the Patent Promise That Poor Nations Honor

x.com/RoleighMartin/status/2033229378738393474

Restore Patent Rights & Cut Living Costs: Free App, Your Governor or State AG, One Letter

x.com/RoleighMartin/status/2034110541896073495

How Expired Bicycle Patents Made Two Wheels Affordable & Why Cars Became Less Affordable

x.com/RoleighMartin/status/2026872195662709207

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